1123

Executive Order.

Lot 2, Sec. 11, T. 54 N., R. 26 W., 4th P. M., and the NE ¼ NW ¼, Sec. 15, T. 143 N., R. 28 W., 5th P. M., in the State of Minnesota, which lands were, by proclamation dated August 27, 1892, (No. 957) withheld from sale or disposal under the various acts for the sale and disposal of the public lands, in pursuance of the acts of March 3, 1879 (20 Stat., 370), June 14, 1880 (21 Stat., 193 and 197), and March 3, 1881 (21 Stat., 481), providing for the improvement of navigation of the headwaters of the Mississippi River, are hereby restored to the public domain, subject to the right of the United States to overflow the same for the purposes of the said improvement: Provided That any patent, or other evidence of title, issued by the United States for the lands hereby restored, or any thereof, shall contain a clause expressly reserving such right of flowage, and exempting the United States from liability for any damage to said lands that may be caused by overflow, erosion, or other action of the waters.

WM H TAFT

THE WHITE HOUSE.
Aug 27, 1909.

[No. 1123.]